

Court No. - 3

Case :- WRIT - C No. - 12580 of 2022

Petitioner :- Smt. Omwati

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Abhay Kumar Srivastava

Counsel for Respondent :- C.S.C.,Ajay Singh,Baleshwar Chaturvedi

Hon'ble Surya Prakash Kesarwani,J.

Hon'ble Jayant Banerji,J.

None appears for the petitioner even in the revised call.

Learned Standing Counsel for respondent no. 1, Sri Ajay Singh, learned counsel for respondent no. 2 and Sri Ashutosh Dwivedi, learned counsel for respondent no. 3 are present.

This writ petition has been filed praying for the following relief :

"(i) issue a writ of certiorari be issued to quashing the impugned order dated 28.12.2020 passed by respondent no. 3, Executive Engineer, Electricity Distribution Division, Pashchimanchal Vidhut Vitran Nigam Limited, Bulandshaher, is liable to be quashed and set aside.

(ii) issue a writ of mandamus respondent no. 3, Executive Engineer, Electricity Distribution Division, Pashchimanchal Vidhut Vitran Nigam Limited, Bulandshaher, be restrain from demanding Rs.50,000/- from the petitioner for restoring the electricity connection of the petitioner.

(iii) issue a writ of mandamus respondent no. 3, Executive Engineer, Electricity Distribution Division, Pashchimanchal Vidhut Vitran Nigam Limited, Bulandshaher, to provide new electricity connection to the petitioner forthwith in accordance with law without demanding alleged arrears of electricity consumption of Rs.50,000/- from the petitioner."

Sri Ashutosh Dwivedi, learned counsel for respondent no. 3 states that the objection/complaint of the petitioner has been decided by the respondent no. 3 vide order dated 28.12.2020, a copy of which has been filed as annexure-2 to the writ petition.

We have perused the order dated 28.12.2020 and we find that there is absolutely no consideration to the objection/complaint including accusation raised by the petitioner in her objection/complaint dated 27.12.2020. On the very next date of the complaint, the order dated 28.12.2020 was passed.

Under the circumstances, we direct the respondent no. 3 to file counter affidavit, giving specific reply to the contents of the objection/complaint of the petitioner dated 27.12.2020, filed as annexure-1 to the writ petition. Along with the counter affidavit, the respondent no. 3 shall file proof of electric poles installed as well as copy of meter ceiling certificate, if any.

Put up as a fresh case on 25 July, 2022 before the appropriate Bench.

Order Date :- 15.7.2022/nd

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Counsel for Petitioner :- Abhay Kumar Srivastava

Counsel for Respondent :- C.S.C.,Ajay Singh,Baleshwar Chaturvedi

Hon'ble Surya Prakash Kesarwani,J.

Hon'ble Chandra Kumar Rai,J.

Heard Sri Rahul Dev Singh, holding brief of Sri Abhay Kumar Srivastava, learned counsel for the petitioner, learned standing counsel for the respondent no.1 / State, Sri Ajay Singh, learned counsel for respondent no.2 and Sri Baleshwar Chaturvedi, learned counsel for the respondent No.3.

This writ petition has been filed praying for the following relief:

"(i) Issue a writ of Certiorari, for setting aside the impugned order dated 28.12.2020 passed by respondent no.3, Executive Engineer, Electricity Distribution Division, Pashchimanchal vidhut Vitran Nigam Limited, Bulandshahr;

(ii) Issue a writ of Mandamus, commanding respondent no.3, Executive Engineer, Electricity Distribution Division, Pashchimanchal Vidhut Vitran Nigam Limited, Bulandshahr for demanding Rs.50,000/- from the petitioner for restoring the electricity connection of the petitioner;

(iii) Issue a writ of Mandamus, commanding respondent no.3, Executive Engineer, Electricity Distribution Division, Pashchimanchal Vidhut Vitran Nigam Limited, Bulandshahr to provide new electricity connection to the petitioner forthwith in accordance with law, without demanding alleged arrears of electricity consumption of Rs.50,000/- from the petitioner."

Sri Baleshwar Chaturvedi, learned counsel for the respondent No.3/ Power Distribution Corporation, states on instructions that the petitioner may file objection against the impugned demand which shall be decided in accordance with law within a time bound period.

In view of the aforesaid and without expressing any

opinion on merits of the case of the petitioner, **this writ petition is disposed off** giving liberty to the petitioner to submit her objection under Para 6.5 of U.P. Electricity Supply Code, 2005 before the respondent No.3, within four weeks from today along with a certified copy of this order. In the event such an objection is submitted within the stipulated period, it shall be decided by the respondent No.3 in accordance with law within next four weeks, after affording reasonable opportunity of hearing to the petitioner.

For a period of eight weeks or till disposal of the objection of the petitioner, whichever is earlier, no coercive action shall be taken against the petitioner in pursuance of the impugned demand.

Order Date :- 25.7.2022

C.Prakash